

TENTATIVE RULINGS

FOR: July 14, 2026

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(Cal. Rules of Court, Rule 1.150(c) & (d))**

**** All matters originally set in Dept. A will be heard in Dept. B
Except as Specifically Noted Below****

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Barend Venter et al v. Ofer Yannay et al

24CV000715

PLAINTIFFS’ MOTION FOR RECONSIDERATION OF THIS COURT’S ORDER OF MAY 13, 2026, GRANTING NOFAR USA’S MOTION TO DISMISS

TENTATIVE RULING: The motion is DENIED.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiffs Venter Ventures LLC and Barend Venter move, pursuant to California Code of Civil Procedure section 1008, for reconsideration of the Court’s Order of May 13, 2026, granting Defendant Nofar USA LLC’s (Nofar USA) motion to dismiss the First Cause of Action of Plaintiffs’ Complaint (Motion to Dismiss).

“When an application for an order has been made to a judge, or to a court, and . . . granted . . . any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order.” (Code Civ. Proc., § 1008, subd. (a) (Section 1008).) “The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (*Ibid.*)

Counsel’s declaration in support of the instant motion states, in part, that “[w]e have never had the opportunity to discuss the conflict between the two conflicting forum selection provisions that are part of the [Membership Interest Subscription and Purchase Agreement].” (Declaration of Martin Glickfeld at ¶ 13 (Glickfeld Decl.)). That agreement is dated May 25, 2021, is alleged and relied upon in the original Complaint (see *id.* at ¶ 27), is the source of the forum-selection clause relied upon by Nofar USA in its moving papers filed June 10, 2024 (see *id.* at 4:14-5:5), and is quoted at length in Plaintiffs’ original opposition filed July 15, 2024 (see *id.* at 2:18-3:14.)

Plaintiffs’ arguments based on the provisions of the Membership Interest Subscription and Purchase Agreement (MIPA), therefore, are not based on new or different facts.

Plaintiffs appear to argue, here, that reconsideration (on these grounds) is appropriate because, through their Opposition to the Motion to Dismiss, they made a tactical decision to advance only one of several germane arguments and, as that one argument has now been rejected, they would like the opportunity to advance the others. (See Support Memorandum at 3:9-13 [“In opposition . . . we asserted that the forum selection provision was unenforceable because of the jury waiver. . . . Given what appeared to be a clearly unenforceable agreement, no other argument was necessary, including but not limited to addressing whether a mandatory provision may still be rejected based on other factors.”], and 7:1-4 [“given the circumstances and state of the law at the time, there was no reason to argue anything but the unenforceability of the MIPA provision. . . . Circumstances changed when the court reached a different result at the hearing, contrary to its tentative ruling.”]; see also Declaration of Martin Glickfeld at ¶ 3 [“The necessity to discuss enforceability of mandatory provision [*sic*] based on other factors did not arise until the hearing where the court granted the motion based on extraneous factors unrelated to the provision itself”].)

Plaintiffs fail, however, to provide authority suggesting that arguments, not based on new or different facts, which could have been, but for tactical reasons were not, raised in an opposition, are a proper basis for reconsideration pursuant to Section 1008. Rather, the law is clear. “A motion for reconsideration must be based on new or different facts, circumstances, or law. [Citation.] ‘To merit reconsideration, a party must give a satisfactory reason why it was unable to present its ‘new’ evidence at the original hearing.’ [Citation.]” (*McPherson v. City of Manhattan Beach* (2000) 78 Cal.App.4th 1252, 1265 (*McPherson*).)

By acknowledging that they elected to not advance the subject arguments because of their belief that there was “no necessity” to do so, Plaintiffs concede that they had the ability to present them through their original Opposition to the Motion to Dismiss. As such, they fail to give a satisfactory reason why they were *unable* to present these arguments through their opposition and at the original hearing. (See *McPherson, supra*, 78 Cal.App.4th at 1265.)

Plaintiffs further argue that Nofar USA has waived and/or repudiated the forum selection clause by “responding to the Second Cause of Action, [and] when Nofar USA, the true plaintiff, filed an additional case against Mr. Venter, it repudiated the MIPA provision.” (Support Memo at 9:14, *et seq.*) The argument is vague and ambiguous to an extent that Plaintiffs fails to persuade the Court that it constitutes grounds for reconsideration.

For the foregoing reasons, the Court is without jurisdiction to reconsider its Order of May 13, 2026. (See Code Civ. Proc., § 1008, subd. (e).)

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CITY OF AMERICAN CANYON’S DEMURRER TO AMENDED PETITION FOR WRIT OF MANDATE; COMPLAINT FOR DAMAGES; REQUEST FOR DECLARATORY AND INJUNCTIVE RELIEF

TENTATIVE RULING: The demurrer is SUSTAINED IN PART and OVERRULED IN PART. The demurrer is SUSTAINED WITH LEAVE TO AMEND as to the First, Second, Third, and Fourth Causes of Action on the ground that the FAP fails to allege compliance with, or excuse from, the Government Claims Act’s claim presentation requirement. The demurrer is OVERRULED in all other respects. Petitioners are granted 10 days’ leave to amend.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

Defendant and Respondent City of American Canyon (“City”) demurs, pursuant to Code of Civil Procedure section 430.10, subdivisions (e) and (f),¹ to Petitioners American Canyon I, LLC (“AC1”) and Napa Valley Ruins and Gardens, LLC’s (“Napa Ruins”) (collectively, “Petitioners”) Verified Amended Petition for Writ of Mandate; Complaint for Damages; Request for Declaratory and Injunctive Relief, filed April 3, 2026 (“FAP”).

The FAP asserts 12 causes of action, nine of which are against City as follows: (1) First Cause of Action for Breach of Contract; (2) Second Cause of Action for Breach of Good Faith & Fair Dealing; (3) Third Cause of Action for Writ of Mandate – Abuse of Discretion (§§ 1085 and/or 1094.5); (4) Fourth Cause of Action for Violation of Mandatory Duties (Gov. Code § 815.6); (5) Fifth Cause of Action for Violation of Procedural Due Process (42 USC § 1983); (6) Sixth Cause of Action for Violation of Equal Protection Clause (42 USC § 1983); (7) Tenth Cause of Action for Inverse Condemnation; (8) Eleventh Cause of Action for Declaratory Relief; and (9) Twelfth Cause of Action for Injunctive Relief.

Petitioners first argue that the City failed to properly meet and confer because, during meet and confer communications, it challenged five causes of action, but its Demurrer challenges all nine. (Opp., 9:18-10:1; Declaration of Carly O. Alameda (“Alameda Decl.”), ¶¶ 4-5, Exh. A; see also § 430.41, subd. (a)(1) [“As part of the meet and confer process, the demurring party shall identify *all of the specific causes of action that it believes are subject to demurrer and identify with legal support the basis of the deficiencies.*”] [Emphasis added.].) The City does not dispute this in Reply. Petitioners do not request any relief on this ground, nor is the Court

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

inclined to issue any relief related thereto. (See *Olson v. Hornbrook Comm. Servs. Dist.* (2019) 33 Cal.App.5th 502, 515 [“Any determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer.”].) That said, the Court reminds counsel that the purpose of meet and confer efforts prior to motion practice is to informally resolve disputes in good faith, which purpose is undermined where a moving party fails to raise all disputes during the meet and confer process.

B. LEGAL STANDARD

A complaint must contain “facts constituting the cause of action.” (§ 425.10, subd. (a)(1).) The party against whom a complaint has been filed may object, by demurrer, on the grounds that “[t]he pleading does not state facts sufficient to constitute a cause of action” and/or “[t]he pleading is uncertain.” (§ 430.10, subds. (e)-(f).) A demurrer is treated as “admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The Court must “construe the allegations of a complaint liberally in favor of the pleader.” (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 438.) The Court must also accept as true facts that may be inferred from those expressly alleged. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) Because “[a] demurrer tests only the legal sufficiency of the pleading . . . the question of plaintiff’s ability to prove the [] allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Comm. on Children’s Television, Inc. v. Gen. Foods Corp.* (1983) 35 Cal.3d 197, 213-14.) The Court may also consider as grounds for a demurrer any matter that is judicially noticeable under Evidence Code sections 451 or 452. (Code. Civ. Proc., § 430.30, subd. (a).)

C. DISCUSSION

1. Demurrer on the Ground Petitioners Failed to Allege Compliance with the Government Claims Act

In general, no suit for damages may be maintained against a governmental entity unless a formal claim has been presented to such entity, and has been rejected (or is deemed rejected by the passage of time). (Gov. Code, §§ 912.4, 945.4; see *Munoz v. State of Cal.* (1995) 33 Cal.App.4th 1767, 1776.) Failure to plead facts showing or excusing compliance with the government claims act’s (“GCA”) presentation requirement subjects a complaint to a general demurrer. (*State v. Sup. Ct. (Bodde)* (2004) 32 Cal.4th 1234, 1239.) Failure to comply with the GCA bars the claim against the public entity, but it is not a jurisdictional defect. (*Id.*, at 1239, fn. 7.)

The parties do not dispute that the City is a public entity protected under the GCA. (Gov. Code, §§ 811.2, 905.)

The City is unclear as to which causes of action it claims fail based on Petitioners’ failure to allege compliance with the GCA. According to the Notice of Demurrer, it is the First, Second, Tenth, and Eleventh Causes of Action. (Notice of Demurrer, p. 2.) According to the Demurrer, it is the entire FAP. (Demurrer, p. 3.) Finally, the Memorandum only discusses it generally as to

Petitioners’ “damage claims” and specifically as to the First and Second causes of action. (Mem., 10:23-24; see also *id.*, 12:14-15 [First Cause of Action], 13:23-24 [Second Cause of Action].)

In Opposition, Petitioners raise this discrepancy and concedes that the First, Second, Third, and Fourth causes of action are subject to the GCA, as those are the only claims for money damages. (See Opp., 12:3-6, fn. 4.) The City implicitly concedes Petitioners’ representation, as it does not address or dispute it in Reply. As such, the Court construes the City’s demurrer for non-compliance with the GCA as applying only to the First, Second, Third, and Fourth Causes of Action.

The universe of allegations in the FAP regarding compliance with the GCA is the single allegation that “Petitioners and ... City ... entered into a tolling agreement on April 29, 2025, which agreement acknowledged the parties’ compliance with the Government Claims Act should either party need to file a legal action like the one contemplated herein.” (FAP, ¶ 16, Exh. A.) The relevant portion of the tolling agreement, attached to the FAC as Exhibit A, states: “In the event either Party elects to terminate this Agreement through a Termination Notice and proceed with a legal action against the other Party, *each Party hereby agrees that all noticing requirements have already been met, including any notice and meet and confer requirements under the Agreement, as well as the Government Claims Act.*” (FAP, ¶ 16, Exh. A, p. 2, ¶ 3. *Italics added.*)

Petitioners recognize that the tolling agreement is only between AC1 and the City. However, Petitioners argue that the FAP alleges that Napa Ruins is AC1’s successor in interest to all of its rights and obligations with regard to a specified portion of the Property (see FAP ¶¶ 4-5), and therefore Napa Ruins can rely on the tolling agreement to the same extent as AC1, under the tolling agreement’s provision stating “[t]his Agreement shall inure to the benefit of and be binding upon the predecessors, affiliates, successors and assigns of the parties.” (*Id.*, ¶ 16, Exh. A, p. 4, ¶ 12.) The City does not dispute or address this in Reply.

The Court agrees with Petitioners that the language in Paragraph 3 of the tolling agreement appears to recognize that the City has agreed that Petitioners met the noticing requirements under the GCA. However, this language does not allege that Petitioners, in fact, complied with the GCA. Rather, Petitioners appear to be relying on the tolling agreement as a basis for a waiver or estoppel ground to argue that Petitioners are excused from the GCA’s claim presentation requirement. (*John R. v. Oakland Unified School Dist.* (1989) 48 Cal.3d 438, 445 [“[A] public entity may be estopped from asserting the limitations of the claims statute where its agents or employees have prevented or deterred the filing of a timely claim by some affirmative act. Estoppel most commonly results from misleading statements about the need for or advisability of a claim; actual fraud or the intent to mislead is not essential.”].) However, such theory of compliance with the GCA is not clearly alleged in the FAP.

The Court acknowledges Petitioners’ argument in Opposition that the FAP’s allegations—specifically regarding delivering a Notice of Default to the City, meeting and conferring with the City, and entering into mediation with the City as to the specific issues which are now raised in the FAP—constitute compliance with the GCA separate from the tolling agreement. (Opp, 11:22-12:2, citing FAP, ¶¶ 79-82.) However, this theory of compliance is not

clearly alleged in the FAP and therefore the Court does not find it satisfies with the GCA pleading requirement.

Based on the foregoing, the demurrer on the ground that the First, Second, Third, and Fourth Causes of Action fail for Petitioners' failure to allege compliance with, or excuse from, the GCA's claim presentation requirement is SUSTAINED WITH LEAVE TO AMEND.

Although the foregoing ruling renders it unnecessary for the Court to consider the City's additional arguments in support of its demurrer as to the First, Second, Third, and Fourth Causes of Action, the Court elects to consider them in the interest of efficiency.

2. Demurrer on Uncertainty Ground

Although the City's Notice of Demurrer and Demurrer are premised, in part, on the ground of uncertainty as to the Third, Fifth, Sixth, and Eleventh Causes of Action, the City's accompanying points and authorities fail to specify in what particulars the Third or Eleventh Causes of Action are uncertain, by failing to address this ground at all with respect to those claims. (Mem., 13:28-15:24, 19:5-20:3.) Generally, failure to specify the uncertain aspects of a complaint will defeat a demurrer based on the grounds of uncertainty. (§ 430.60.) Thus, at the outset, the Court overrules the City's demurrer that the Third and Eleventh Causes of Action are uncertain.

With respect to the Fifth Cause of Action, the Court does not find it "fatally vague" for lacking in allegations of "what process was due, why notice was not enough, and how the lack of notice deprived it of a fair hearing" (see Mem., 17:4-5, 21-22), where the FAP clearly alleges that the City itself discharged, and further allowed the Newell Family to discharge, stormwater into Napa Ruins' private property without providing Napa Ruins' a formal hearing or opportunity to object, thereby causing harm. (See FAP, ¶¶ 53-61, 119-125.) This is sufficiently certain.

With respect to the Sixth Cause of Action, the City's brief uncertainty argument appears to be alternative to, and duplicative of, the City's argument that the FAP fails to state facts to constitute a cause of action for Equal Protection violations. (See Mem., 18:10-12.) That ground is discussed below. Moreover, a demurrer for uncertainty is disfavored and may only be sustained where the allegations render the complaint so incomprehensible that a defendant cannot reasonably respond. (*Lickiss v. Financial Industry Regulatory Authority* (2012) 208 Cal.App.4th 1125, 1135.) The Court finds the FAP, including the Third, Fifth, Sixth, and Eleventh Causes of Action, to be entirely comprehensible such that the City can reasonably respond.

Based on the foregoing, the demurrer on the ground that the Third, Fifth, Sixth, and Eleventh Causes of Action are uncertain is OVERRULED.

3. Demurrer to First Cause of Action for Breach of Contract

The City further demurs to the First Cause of Action on the ground that it fails to state facts sufficient to constitute a cause of action because the Development Agreement is not attached.

As an initial matter, the City references section 430.10, subdivision (g) in support of this argument. This subdivision was not included in the City's Notice of Demurrer or Demurrer and is therefore improper. (See *Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1125 [holding a court generally cannot grant different relief, or relief on different grounds, than that stated in the notice of motion].) Nevertheless, the Court finds that Petitioners have complied with the requirement that a breach of contract action must either set out verbatim the terms in the body of the complaint or attach a copy of the written instrument. (See *Otworth v. Southern Pacific Transportation Co.* (1985) 166 Cal.App.3d 452, 459.)

Petitioners confirm in Opposition that this was an inadvertent error. The FAP clearly references Exhibit C as attaching the Development Agreement. (FAP, ¶ 40.) Upon realizing the error, Petitioners filed a Notice of Errata to include the correct Exhibit C to the FAP. Even without the Development Agreement attached, the Court finds that the FAP sufficiently alleges a breach of contract action, as the relevant portions of the Development Agreement are quoted in the FAP.

Thus, the demurrer on the ground that the First Cause of Action fails for Petitioners' failure to attach the Development Agreement is OVERRULED.

4. Demurrer to Second Cause of Action for Breach of Good Faith & Fair Dealing

The City further demurs to the Second Cause of Action on the ground that it does not state facts sufficient to constitute a cause of action separate from the First Cause of Action for Breach of Contract. The City relies on authority pertaining to implied covenants of good faith and fair dealing. "If the allegations do not go beyond the statement of a mere contract breach and, relying on the same alleged acts, simply seek the same damages or other relief already claimed in a companion contract cause of action, they may be disregarded as superfluous as *no additional claim is actually stated.*" (*Careau & Co. v. Security Pacific Business Credit, Inc.* (1990) 222 Cal.App.3d 1371, 1395. Italics in original.)

Petitioners argue that the City's authority, pertaining to an *implied* covenant of the good faith and fair dealing provision, is inapplicable because the Second Cause of Action alleges breach of an *express* covenant of good faith and fair dealing.

The Court finds that, while the First and Second Causes of Action both seek damages related to violations of the same contract (the Development Agreement), they rely on different alleged acts and primarily assert violations of different provisions of the Development Agreement. (See FAP, ¶¶ 87, 95.) Although the First Cause of Action references the good faith and fair dealing provision of the Development Agreement (Section 2.04), the gravamen of the alleged violations is separate from those constituting the Second Cause of Action. Given that

both causes of action allege breaches of the same contract—albeit separate provisions—they arguably could be contained within the same cause of action. However, the fact that the allegations are included under a label for a separate cause of action does not render the allegations under Second Cause of Action superfluous, as they are relevant to Petitioners’ claim for breach of the good faith and fair dealing provision of the Development Agreement (Section 2.04). (See *Jaffe v. Carroll* (1973) 35 Cal.App.3d 53, 57 [“It is an elementary principle of modern pleading that the nature and character of a pleading is to be determined from its allegations, regardless of what it may be called, and that the subject matter of an action and issues involved are determined from the facts alleged rather than from the title of the pleadings [or labels therein].”].)

Based on the foregoing, the demurrer on the ground the Second Cause of Action is superfluous to the First Cause of Action is OVERRULED.

5. Demurrer to Third Cause of Action for Writ of Mandate

The City further demurs to the Third Cause of Action on the grounds that it fails to state a claim under either section 1085 or section 1094.5.

“A writ of mandate will lie to ‘compel the performance of an act which the law specifically enjoins, as a duty resulting from an office, trust, or station’ (Code Civ. Proc., § 1085) ‘upon the verified petition of the party beneficially interested,’ in cases ‘where there is not a plain, speedy, and adequate remedy, in the ordinary course of law.’ (Code Civ. Proc., § 1086.)” (*Larson v. City of Redondo Beach* (1972) 27 Cal.App.3d 332, 336.) This remedy is commonly called “traditional mandamus.” (*Gong v. City of Fremont* (1967) 250 Cal.App.2d 567, 571-72.) “[The traditional mandamus] is limited to the enforcement of purely ministerial duties and will not lie to control discretion within the area lawfully entrusted to an administrative body. [Citations.]” (*Id.*, at 572.) “Two basic requirements are essential to the issuance of the writ: (1) A clear, present and usually ministerial duty upon the part of the respondent [citations]; and (2) a clear, present and beneficial right in the petitioner to the performance of that duty [citation].” (*Larson, supra*, 27 Cal.App.3d at 336.)

A writ of mandate is also available “to inquire into the validity of some kinds of quasi-judicial actions of administrative agencies (commonly called ‘administrative mandamus,’ Code Civ. Proc. § 1094.5).” (*Gong, supra*, 250 Cal.App.2d at 571-72.) “Administrative action is subject to review under section 1094.5 only as to certain aspects specified in subsection (b): want or excess of jurisdiction; whether there was a fair trial; and whether there was prejudicial abuse of discretion. Abuse of discretion is shown by failure of the administrative agency to proceed as required by law, failure of the findings to support the decision, or failure of the evidence to support the findings.” (*Id.* at 573.)

“[I]t is settled that the sufficiency of a petition in a mandamus proceeding can be tested by demurrer.” (*Larson, supra*, 27 Cal.App.3d at 337.)

Here, Petitioners seek a writ to compel the City to (a) collect and remit reimbursement from the Newell Family consistent with Watson Ranch Specific Plan (“WRSP”) section 9.4.1.5;

and (b) cease and remediate unauthorized stormwater routing into Quarry Lake. (FAP, ¶¶ 110-111, Prayer (p. 35), ¶ 1; see also FAP, Exh. B [WRSP].)

Petitioners allege that the City’s mandatory duty as to (a) is imposed by the WRSP, the Development Agreement or Government Code section 65456. Specifically, the WRSP states: “[T]he City, after adopting the WRSP, shall determine the total WRSP Costs, the City shall determine the amount the Newell Family Property owes toward those total WRSP Costs, and *the City shall impose a requirement that the Newell Family Property pay its portion of the WRSP Costs before it is approved for any development.*” (FAP, ¶ 29.) The FAP further alleges that the City has approved the Newell Family Property for the development of a subdivision without imposing a requirement that the Newell Family Property pay its portion of the WRSP Costs. (FAP ¶¶ 37-39.)

In its Memorandum and Reply, the City argues—without acknowledging Petitioners’ arguments as to the “shall” language in the WRSP—that its duty under the WRSP is discretionary. (See Mem., 14:15.) The City fails to resolve the tension between its assertion of discretion with the mandatory language in the WRSP. To the extent the City is contending its decisions with respect to the development of the Newell Family Property are discretionary, that is a different issue than Petitioners are raising in the FAP. Petitioners do not challenge the City’s approval for developments on the Newell Family Property; rather, Petitioners contend that the City has not complied with its duty under the WRSP to require the Newell Family Property to pay its portion of the WRSP Costs as a condition of approving developments. To the extent the City is contending the timing and amount of the costs that the Newell Family Property should pay is discretionary (see Reply, 6:2-4), the timing mandated by the WRSP is “before” any development is approved for the Newell Family Property, which time the FAP alleges has passed. Moreover, the method for calculating the amount of the Newell Family Property’s WRSP Costs is outlined in the WRSP. (See FAP, ¶ 29.) Based on the foregoing, the Court finds that the FAP properly alleges a clear, present and usually ministerial duty upon the part of the City, and a clear, present and beneficial right in Petitioners’ to the performance of that duty.

A general demurrer does not lie to only part of a cause of action. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1167, disapproved on other grounds by *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 948.) Thus, the Court’s above finding renders it unnecessary for the Court to reach the second part of the Third Cause of Action for a writ to compel the City to cease and remediate unauthorized stormwater routing into Quarry Lake. Based on the foregoing, the demurrer to the Third Cause of Action is OVERRULED.

6. Demurrer to Fourth Cause of Action for Violation of Mandatory Duties (Gov. Code § 815.6)

“Where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty.” (Gov. Code, § 815.6.)

The City further demurs to the Fourth Cause of Action on the ground that it fails to set forth a mandatory duty imposed on the City for which relief may be granted and therefore fails to state a viable cause of action. Specifically, the City argues that Petitioners have failed to allege an “enactment ... designed to protect against the risk of a particular kind of injury.”

Petitioners argue that the FAP sufficiently alleges this because it alleges that the WRSP mandated the City to require the Newell Family to reimburse Petitioners for permitting fees prior to approving developments for the Newell Family, and the City failed to comply therewith. (Opp., 15:11-15, citing FAC ¶¶ 25-39, 113-118 and FAC, Exh. B § 9.4.1.5.) Petitioners argue that the WRSP is an enactment for purposes of section 815.6. (Opp., 15:19-27., citing Gov. Code, §§ 810.6, 65450.) Petitioners show that the City also considers the WRSP an enactment. (Opp., 15:17-19, citing Mem., at 10 [“A Specific Plan is a legislative enactment...”].)

The Court finds that the FAP sufficiently alleges facts to state a cause of action under Government Code 815.6. The WRSP, attached as Exhibit B to the FAP, expressly states that it was adopted by Ordinance 2018-08 on October 16, 2018, and amended by Ordinances 2019-06 and 2023.07. This supports that it is an enactment as that term is defined under Government Code section 810.6, which includes an ordinance and regulation. The Court further finds that the WRSP expressly states a desire to protect Petitioners regarding reimbursement of costs. (See FAP, ¶ 29, citing § 9.4.1.5 of the WRSP [expressly setting forth Petitioners and the Newell Family’s responsibility for costs and recognizing that Petitioners have “already paid for the bulk (if not all) of the WRSP Costs. Therefore, the City, after adopting the WRSP, shall determine the total WRSP Costs, the City shall determine the amount the Newell Family Property owes toward those total WRSP Costs, and the City shall impose a requirement that the Newell Family Property pay its portion of the WRSP Costs before it is approved for any development.”].)

Based on the foregoing, the demurrer to the Fifth Cause of Action is OVERRULED.

7. Demurrer to Sixth Cause of Action for Violation of Equal Protection Clause

The City demurs to the Sixth Cause of Action on the grounds that it fails to meet the pleading requirements for a class of one claim, specifically failing to allege facts satisfying the second and third elements for such a claim.

“To succeed on a class of one equal protection claim, a plaintiff must establish that (1) the plaintiff was treated differently from other similarly situated persons, (2) the difference in treatment was intentional, and (3) there was no rational basis for the difference in treatment.” (*Bottini v. City of San Diego* (2018) 27 Cal.App.5th 281, 318. Internal quotations omitted.)

In Opposition, Petitioners argue its FAP alleges facts satisfying all elements. The Court agrees and finds that the Sixth Cause of Action sufficiently alleged for pleading purposes. (FAP, ¶¶ 126-131.)

Thus, the demurrer on the ground that the Sixth Cause of Action fails to state a claim is OVERRULED.

8. Demurrer to Tenth Cause of Action for Inverse Condemnation

The City demurs to the Tenth Cause of Action on the ground that it fails to set forth a public project for which the City would have liability and therefore fails to state a viable cause of action. The City argues that “third-party stormwater runoff” does not qualify as “a public improvement deliberately designed and constructed.” The City further argues that the FAP fails to allege how any public project poses an unreasonable risk of harm to the property.

Petitioners do not dispute that an inverse condemnation claim requires a public project as deliberately designed and constructed, which presents inherent risks of damage to private property. Petitioners contend that the FAP satisfies this requirement because it alleges that both the City and the Newell Family (with the City’s permission) have discharged contaminated stormwater runoff into Napa Ruin’s privately owned Quarry Lake *through City-owned drainage systems designed to run into that lake, and which have caused damage to that lake.* (Opp., 17:23-26 (emphasis added), citing FAP, ¶¶ 53-61, 147-155.)

The Court agrees with Petitioners that the identified allegations of the FAP satisfy the requirements for an inverse condemnation claim which the City asserts are missing. Thus, the demurrer on the ground that the Tenth Cause of Action fails to state a viable cause of action is **OVERRULED**.

9. Demurrer to Eleventh Cause of Action for Declaratory Relief

The City further demurs to the Eleventh Cause of Action on the grounds that it (1) seeks an advisory opinion, and presents no actual controversy, (2) is duplicative of the First Cause of Action, and therefore, fails to demonstrate why Petitioners’ legal remedy is insufficient requiring equitable relief, and (3) requests improper relief because a court cannot tell the City how to exercise its discretionary decision-making power.

Even assuming *arguendo* the Eleventh Cause of Action seeks a declaration of rights concerning the same terms of the contract at issue in the First Cause of Action, this method of pleading is permissible where, as here, the declaratory relief sought would also govern the future conduct of the parties. (See FAP, ¶ 157-160; see *Osseous Technologies of America, Inc. v. DiscoveryOrther Partners LLC* (2010) 191 Cal.App.4th 357, 371-73 [analyzing line of cases and recognizing trial court’s authority to provide declaratory relief in a dispute involving an alleged breach of contract if the relief sought would also govern the future conduct of the parties].) Moreover, the Court finds that the FAP alleges an actual controversy and does not merely seek an advisory opinion. Finally, given that the demurrer as to Petitioners’ other substantive claims has been overruled, the Court does not find that the declaratory relief cause of action clearly seeks a declaration of rights to which Petitioners are not legally entitled.

Based on the foregoing, the demurrer to the Eleventh Cause of Action is **OVERRULED**.

10. Demurrer to Twelfth Cause of Action for Injunctive Relief

The City demurs to the Twelfth Cause of Action on the grounds that an injunction (1) is a remedy, not a cause of action, and (2) requires an underlying viable claim which has not been pled.

Given that the demurrer as to Petitioners' other substantive claims authorizing injunctive relief has been overruled (or sustained with leave to amend), the Court does not find that the injunctive relief cause of action fails for the failure to have a viable underlying claim.

While the title "Twelfth Cause of Action for Injunctive Relief" is arguably superfluous because an injunction is a remedy and not a cause of action, sustaining a demurrer on that ground would elevate form over substance. The Prayer properly requests injunctive relief, and the facts pled in Paragraphs 161-165 of the Twelfth Cause of Action support that request. Sustaining a demurrer simply because the facts supporting injunctive relief were alleged under the heading Twelfth Cause of Action rather than among the general allegations is a futile act.

Based on the foregoing, the demurrer to the Twelfth Cause of Action is OVERRULED.

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Conservatorship of Angel Alfaro

23PR000065

REVIEW HEARING

TENTATIVE RULING: After a review of the matter, the Court finds the Co-Conservators are acting in the best interest of the Conservatee. Thus, the case is set for a Review–Biennial hearing in two years, on July 14, 2028, at 8:30 a.m. in Dept. B. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

.....
Conservatorship of Sienna Notaro

26PR000113

PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE PERSON – LIMITED CONSERVATORSHIP

TENTATIVE RULING: The matter is CONTINUED to August 11, 2026, at 8:30 a.m. in Dept. B to permit Petitioners to address the following issues:

1. There is no Proof of Service on paternal grandparents Francisco Walle and Nancy Notaro in the Court's file, as mandated by Probate Code Sections 1821, subdivision (b), and 1822, subdivision (b)(2).

2. There is no proof of personal service on the Proposed Conservatee of the Citation, issued May 21, 2026, as required pursuant to Probate Code sections 1823, subdivision (a) and 1824.
3. Petitioner is directed to submit a Proposed Order Appointing Legal Counsel (GC-006) for the proposed conservatee pursuant to Probate Code Section 1471, subdivision (c). Upon request, the Court may appoint the Public Defender to represent the proposed conservatee.
4. The Petition is not verified by petitioner Elizabeth Notaro as mandated by Probate Code, Section 1021. Petitioner is directed to file an amended verified petition.

Petitioners are encouraged to contact the Court's Self-Help Center, located on the lower level of the Historic Courthouse at 825 Brown Street, for assistance.

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Conservatorship of Marsha Makemson

26PR000115

PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE PERSON AND ESTATE

APPEARANCE REQUIRED

.....

Conservatorship of Rajeshwari Pandey

26PR000141

PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE PERSON

TENTATIVE RULING: The matter is CONTINUED to August 11, 2026, at 8:30 a.m. in Dept. B to permit petitioners to address the following issues:

- (1) There is no Proof of Service on relatives within the second degree as mandated by Probate Code Sections 1821, subdivision (b), and 1822.
- (2) There is no proof of personal service on the Proposed Conservatee of the Citation, issued June 24, 2026, as mandated by Probate Code sections 1823, subdivision (a) and 1824.
- (3) There is no medical inability to attend hearing, (Judicial Counsel of California form GC-325) on file as mandated by Probate Code Section 1825, subdivision (a)(2).

Petitioners are encouraged to contact the Court's Self-Help Center, located on the lower level of the Historic Courthouse at 825 Brown Street, for assistance.

.....

Conservatorship of Lee Ann Sedgwick

PR22875

REVIEW HEARING

TENTATIVE RULING: After a review of the matter, the Court finds the Co-conservators are acting in the best interest of the Conservatee. Thus, the matter is set for a

Review – Biennial hearing in two years, on July 14, 2028, at 8:30 a.m. in Dept. B. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Platte River Insurance Company v. William Deem et al

24CV000384

MOTION FOR AWARD OF ATTORNEY FEES

TENTATIVE RULING: The matter is CONTINUED to September 3, 2026, at 8:30 a.m. in Dept. A. Plaintiff is to provide *timely*, code-compliant notice of the continued hearing. If Plaintiff is unable to provide timely notice of the next hearing, the motion may be denied without prejudice.

Plaintiff Platte River Insurance Company moves, pursuant to California Code of Civil Procedure Section 1033.5, subdivision (a)(10)(A) and Civil Code § 1717, for an order awarding attorney fees in favor of Plaintiff on its Complaint for breach of written indemnity agreement against Defendants William Deem and Kimberton Wines, LLC (Kimberton, and collectively Defendants).

“The court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.” (*Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05.) The last day to provide notice, by mail from Arizona, of the instant hearing was June 8, 2026. (See Code Civ. Proc. §§1005, subd. (b) [“all moving and supporting papers shall be served and filed at least 16 court days before the hearing” and “if the notice is served by mail, the required 16-day period of notice before the hearing shall be increased by . . . 10 calendar days if . . . the place of mailing . . . is outside the State of California . . .”]) The proof on file indicates service on June 15, 2026. Plaintiff, therefore, failed to provide adequate notice of the hearing date.

This is Plaintiff's second failure to provide adequate notice of the hearing. Subsequent failure to do so may result in the Court denying the motion without prejudice.

.....

- [1] DEFENDANTS' MOTION TO COMPEL INTERROGATORY RESPONSES AND REQUEST FOR MONETARY SANCTIONS IN AN AMOUNT NO LESS THAN \$960
and
[2] DEFENDANTS' MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET TWO; TO COMPEL PRODUCTION OF DOCUMENTS; COMPEL COMPLIANCE; AND REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF \$1,460

TENTATIVE RULING: Both matters are CONTINUED to August 13, 2026, at 8:30 a.m. in Dept. B to allow the moving party to provide sufficient notice of the motions.

June 19 and July 3, 2026 were Court holidays. (See Code Civ. Proc., §§ 10, 135, and Govt. Code, § 6700, subds. (a)(11) and (12).) As a result, June 16, 2026 was the last day for service, by electronic means, of a notice and papers filed in support of a motion set for hearing on July 14, 2026. (See Code Civ. Proc., §§ 12c, subds. (a) and (b), 1005, subd. (b), and 1010.6, subd. (a)(3)(B).) The evidence of service before the Court indicates electronic service on June 29, 2026. As such, the moving party failed to serve the notice and moving papers 18 court days before the hearing as required. Because the other parties to the action have not waived the defect in service, either expressly, or by filing substantive oppositions or non-oppositions to the motion, the Court is without jurisdiction to hear it. (*Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05 ["The court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question."].) Even if substantive oppositions are filed after the drafting of this Tentative Ruling, the moving party still failed to provide sufficient notice to the Court by failing to *file* the motions 16 court days before the hearing. (See Code Civ. Proc., § 1005, subd. (b).)

The moving party is directed to (1) prepare an Amended Notice which contains the continued hearing date, as well as notice of the Court's tentative ruling system as required by Local Rule 2.9, (2) provide timely service of the Amended Notice and moving papers to all other parties, and then (3) file a proof of service pursuant to Rules of Court, rule 3.1300, subd. (c).

- [3] DEFENDANTS' MOTION FOR TERMINATING OR ISSUE SANCTIONS AGAINST PLAINTIFF

TENTATIVE RULING: The motion is GRANTED IN PART. The motion for terminating sanctions is DENIED. The motion for issue/evidentiary sanctions is GRANTED. Plaintiff is barred from introducing the communications on Plaintiff's phone referenced in her February 25 deposition between her and Ms. Carlson, and the factfinder shall be instructed to presume that the communications on Plaintiff's phone referenced in her February 25 deposition between her and Ms. Carlson do not contain information supporting Plaintiff's testimony.

The moving party is directed to immediately provide, by telephone call AND email, notice of the Court's tentative ruling system under Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in

effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

The matter originally came on July 2, 2026 by way of Defendants' *ex parte* application. The Court declined to hear that matter on an *ex parte* basis and granted the alternative request to shorten time on the underlying motion for terminating or issue sanctions. Plaintiff's Opposition was ordered due July 7 and Defendants' Reply due July 9.

Defendants move, pursuant to Code of Civil Procedure sections 2023.010 and 2023.030, subdivision (d)(3), 2030.290, subdivision (c),² for an order granting terminating sanctions against Plaintiff. Alternatively, Defendants request evidentiary sanctions, ordering "an adverse inference instruction regarding the alleged health issues inhibiting Attorney Spohn's handling of the Underlying Action." (Mem., 11:14-16.)

B. LEGAL STANDARDS

"[I]f a party ... fails to obey an order compelling inspection, copying, testing, or sampling, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction In lieu of or in addition to that sanction, the court may impose a monetary sanction" (§ 2031.320, subd. (c).) Moreover, "[a] court may invoke its independent authority to impose sanctions under sections 2023.010 and 2023.030 only when confronted with an unusual form of discovery abuse, or a pattern of abuse, not already addressed by a relevant sanctions provision." (*Ibid.*) Together, they authorize discretionary sanctions "against anyone engaging in conduct that is a misuse of the discovery process," including failure to respond or to submit to an authorized method of discovery and failure to comply with a court order to provide discovery constitutes a misuse of the discovery process. (§ 2023.010, subds. (d), (g).)

Faced with misuse of the discovery process, the Court may impose whatever sanctions are just, including issue sanctions, evidence sanctions, terminating sanctions, and monetary sanctions. (§ 2023.030.) It is the moving party's burden to demonstrate the responding party's failure to obey the earlier discovery order. (*Corns v. Miller* (1986) 181 Cal.App.3d 195, 201.) Then the burden of proof shifts to the party seeking to avoid sanctions to establish a suitable justification for his conduct. (*Ibid.*) Two facts are generally prerequisite to the imposition of non-monetary sanctions: (1) there must be a failure to comply with a court order; and (2) the failure must be willful. (*Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc.* (2008) 163 Cal.App.4th 1093, 1102.)

"The sanctions the court may impose are such as are suitable and necessary to enable the party seeking discovery to obtain the objects of the discovery he seeks, but the court may not impose sanctions which are designed not to accomplish the objects of discovery but to impose punishment." (*Laguna Auto Body v. Super. Ct.* (1991) 231 Cal.App.3d 481, 490, citing *Motown*

² All subsequent statutory references are to the Code of Civil Procedure, unless otherwise specified.

Records Corp. v. Super. Ct. (1984) 155 Cal.App.3d 482, 489.) The sanctions imposed must be tailored to “fit the crime.” (*Reedy v. Bussell* (2007) 148 Cal.App.4th 1272, 1293.)

C. DISCUSSION

The basis for Defendants’ Motion is that Plaintiff (1) has repeatedly refused to comply with her discovery obligations, for which monetary sanctions have been imposed no less than four times, for a total amount of \$9,030, (2) refuses to comply with the May 29, 2026 Order compelling her to comply with her agreement to produce responsive documents, and (3) has made misrepresentations to the Court and Defendants/counsel regarding the existence of the underlying documents and payment of previously-ordered sanctions. (Mem., 9:12-14, citing Declaration of Kristin C. Choi (“Choi Decl.”), ¶¶ 4, 8, 9, Exh. B2.)

1. First Basis

As to the first ground, the Court is familiar with the history of the parties’ discovery disputes and is aware that Plaintiff has had monetary sanctions imposed against her and/or her counsel on multiple occasions, most recently with respect to Plaintiff’s failure to successfully oppose motions as to her deposition testimony and Defendants’ request to compel compliance with document demands. (See 5/29/26 Minute Order.)

2. Second Basis

With respect to the second basis, it is undisputed that Plaintiff has refused to comply with the May 29 Order compelling Plaintiff’s compliance, by June 11, with her agreement to produce text messages and telephone records concerning communications between Plaintiff and Laurie Carlson regarding the malpractice suit. It is clear to the Court that Plaintiff and Plaintiff’s counsel’s representations in February and March 2026 led Defendants to believe that these documents existed in Plaintiff’s possession and that Plaintiff was working on gathering them for the past four months. (Choi Decl., ¶¶ 10, 14, Exh. D, Exh. G, 172:6-24.) Moreover, as held in the May 29 Order, it is clear that those specific documents are responsive to Defendants’ Request for Production of Documents, Set one, served October 6, 2025; and therefore should have accompanied Plaintiff’s responses on November 21, 2025.

Moreover, on June 25, 2026, the Court noted that Plaintiff had already failed to comply with the timely production of responsive documents, and *re-ordered* Plaintiff to produce the documents by 12:00 p.m. on June 26 (“June 26 Order”). (Choi Decl., ¶ 8.) At the *ex parte* hearing, Plaintiff’s counsel represented that he would do his best to comply with the deadline. (*Id.*, ¶ 9.)

Instead of producing those responsive documents as (twice) ordered, Plaintiff produced an *unverified further response* to the subject document requests on June 26, representing that she no longer has access to the cell phone number and account, on which the responsive text messages and phone logs are stored, but believes they might exist within the possession, custody, and control of Verizon under the phone number of 408-274-0213. (*Id.*, ¶ 13, Exh. F; Declaration

of Stacey Cootes (“Cootes Decl.”), ¶ 17, Exh. 1³.) The time to raise that issue was in response to Defendants’ motion to compel compliance with the subject document requests, which resulted in the May 29 Order; not a month after the Court ordered the specific responsive documents produced, or two weeks after Plaintiff’s deadline expired to comply with the Court’s order. Yet, Plaintiff never raised any issue regarding an inability to produce those responsive documents, as Plaintiff did not even file an opposition to Defendants’ motion to compel compliance. (See 5/29/26 Minute Order, p. 3 [“Plaintiff implicitly concedes the foregoing by failing to file a response or opposition.”].)

In Opposition to the present motion, Plaintiff attempts to justify her conduct by arguing that her testimony on February 25, 2026 was an honest mistake, and it was not until her “subsequent investigation” that she realized the communications had been stored on a previous cellular telephone that she no longer possessed after changing phones following Attorney Spohn’s representation of her in the underlying matter. (Opp., 5:21-22, Declaration of Stacey Cootes (“Cootes Decl.”), ¶¶ 13, 15.) Given that Plaintiff’s counsel represented, at a hearing on June 25, that the responsive documents would be produced on June 26, Plaintiff’s “subsequent investigation” apparently did not occur until June 25 or 26. Plaintiff attempts to justify the delay between her February 25 testimony and her June 26 further response by showing that she has experienced serious medical and mental health issues the past four months that have prevent her from fully assisting her counsel in responding to, or complying with, discovery. (Cootes Decl., ¶¶ 1-2.) Plaintiff’s counsel’s only attempt to justify his representations over the past four months regarding the status of Plaintiff’s compliance is to state that, prior to the June 25 *ex parte* hearing, he attempted to meet and confer with Defendants’ counsel to request additional time to complete Plaintiff’s discovery obligations due to Plaintiff’s health issues. (Declaration of Eric Bryan Seuthe (“Seuthe Decl.”), ¶ 14.)

The Court acknowledges Defendants’ showing regarding Plaintiff’s inconsistent testimony between her February 25 deposition, June 26 further verified response and Opposition to the present motion, and her June 29 deposition testimony. (Choi Decl., ¶¶ 10, 14, Exh. D, Exh. G, 172:6-24; Reply, 4:20-26, Reply Declaration of Kristin C. Choi (“Reply Choi Decl.”), Exh. J, PDF p. 73:7-10.) The inconsistencies make the Court question whether Plaintiff’s June 26 *unverified* further response (that she no longer has the cell phone in her possession) is even accurate, as, when Plaintiff was asked at her June 29 deposition why she does not have in her possession the text messages that she shared with Ms. Carlson, Plaintiff only responded that she cleans out her phone all the time to save space. (Reply Choi Decl., Exh. J, PDF p. 73:7-10.)

Moreover, the Court agrees with Defendants that the circumstances behind Plaintiff changing phones, and the timing of that revelation (right before Defendants’ motion for summary judgment deadline) are suspicious, particularly where (1) Plaintiff provides no specifics as to timing or the reason, (2) multiple layers of inconsistent testimony exist, and (3) Plaintiff does not directly address or dispute, in Opposition, Defendants’ claim of improper spoliation/destruction of evidence. It is simply unbelievable, even in the face of Plaintiff’s evidence that she could not

³ The Court notes that Plaintiff’s Opposition and Plaintiff’s Counsel’s Declaration assert that Plaintiff’s June 26 further response is “verified” (see Opp., 6:1-2, 7:28, 9:16; Seuthe Decl., ¶ 12.) However, the evidence to which she cites (the Cootes Decl.) does not state the further response was verified, nor does the exhibit attached thereto contain any such verification. (Cootes Decl., ¶ 17, Exh. 1.)

fully participate in discovery at all relevant times, that Plaintiff and/or Plaintiff's counsel could not have discovered the fact that Plaintiff no longer possesses the phone account or records she referenced in her February 25 deposition at any time prior to June 26, including by June 11 (the May 29 Order deadline) or May 15 (the deadline for Plaintiff's opposition to Defendants' motion to compel compliance). In this sense, the Court finds that Plaintiff's non-compliance with the May 29 Order and June 25 Order was willful—Plaintiff was aware of the May 29 Order, had the ability to obey it, and intentionally chose to change her discovery response instead of complying with the May 29 Order.

While the Court recognizes Plaintiff's contention that Defendants are entitled to subpoena the Verizon records to attempt to obtain the communications Plaintiff has failed to produce, Defendants have lost at least four months of time to do so, through no fault of their own, but instead based on Plaintiff's and Plaintiff's counsel's inexcusable delay and discovery misuse.

3. Third Basis

With respect to the third basis, Defendants take issue with Plaintiff's counsel having represented at the June 25 *ex parte* hearing that a sanctions check *for the full amount owed* had already been placed in the mail and that the *responsive documents* would be produced by June 26 at 12:13 p.m. Defendants contend that neither of those comments were true at the time made, as it is undisputed that the sanctions check Defendants received on June 25 was not for the full amount and, as noted, Plaintiff did not produce *documents* on June 26, but rather a further response (which response is dated June 25, only signed by Plaintiff's counsel) stating that no such documents are in her possession as Plaintiff no longer has access to the phone number and account.

In Opposition, Plaintiff argues that it is an abuse of discretion for a trial court to issue a terminating sanctions for failure to pay a sanction. (Opp., 6:17-26, citing *Newland v. Sup. Ct.* (1995) 40 Cal.App.4th 608, 610.) However, this misses Defendants' point that the basis for sanctions is, in part, Plaintiff's counsel's misrepresentations about the alleged compliance with the sanctions order, which basis Plaintiff does not address in Opposition, other than to say the full amount of sanctions has now been paid, which Defendants continue to dispute. (See Reply Choi Decl., ¶ 4.)

The Court finds, from the foregoing, that Plaintiff and/or Plaintiff's counsel have been less than forthcoming with Defendants and the Court.

4. Conclusion

In sum, the Court finds that all three bases raised by Defendants support the imposition of non-monetary sanctions.

The Court has considered the several factors outlined in *Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 796 ⁴ in deciding whether and which sanctions to impose for disobedience to discovery orders. In doing so, the Court does not find terminating sanctions, the highest possible sanction, appropriate at this juncture, but finds that evidence/issue sanctions are appropriate.

In support of Defendants' request for evidentiary/issue sanctions, Defendants argue that Plaintiff's theories regarding Attorney Spohn's alleged medical issues are based solely on what Ms. Carlson told Plaintiff and, therefore, the factfinder should be instructed that they are not to consider any evidence of Attorney Spohn having health issues which contributed to his withdrawal. (Mem., 11:17-19, citing Choi Decl., Exh. G, 14:16-16:20.)

The Court's review of Exhibit G to the Choi Decl. indicates that Plaintiff testified that Ms. Carlson, an old employee of Attorney Spohn, told Plaintiff that Attorney Spohn was subject to a 5150 hold in February 2023, just days before Plaintiff wrote a letter to the judge in the Underlying Action. (Exh. G, 14:16-25, 15:8-11, 20-24.) Plaintiff further testified that she did not get information regarding Attorney Spohn being the subject of a 5150 hold from anybody else. (Exh. G, 16:12-14.)

Given that the testimony is limited to Plaintiff receiving from Ms. Carlson information regarding Attorney Spohn being subject to a 5150 hold in February 2023, Defendants' request for the jury to be instructed that they are not to consider *any* evidence of Attorney Spohn having *any* health issues which contributed to his withdrawal, "including not being capable to practice and represent clients as an attorney" is vastly overbroad. (See 7/2/26 Proposed Order, p. 2.)

That said, the Court finds that proper evidentiary/issue sanctions include: (1) barring Plaintiff from introducing the communications on Plaintiff's phone referenced in her February 25 deposition between her and Ms. Carlson, and (2) instructing the factfinder to presume that the communications on Plaintiff's phone referenced in her February 25 deposition between her and Ms. Carlson do not contain information supporting Plaintiff's testimony.

.....

⁴ These factors include (1) the time that has elapsed since the discovery was served; (2) Whether the party received extensions of time to answer or respond; (3) The number of discovery requests and the burden of replying; (4) The importance of the information sought; (5) Whether the answering party acted in good faith and with reasonable diligence—i.e., whether the answering party was aware of the duty to furnish the requested information and had the ability to do so; (6) Whether the answers supplied were evasive or incomplete; (7) The number of questions remaining unanswered; (8) Whether the unanswered questions sought information that was difficult to obtain; (9) The existence of prior court orders compelling discovery and the answering party's compliance with them; (10) Whether the party was unable to comply with previous orders re discovery; (11) Whether an order allowing more time to respond would enable the responding party to supply the necessary information; and (12) Whether some sanction short of dismissal or default would be appropriate to the dereliction.

**MOTION TO VACATE DISMISSAL AND ENTER JUDGMENT PURSUANT TO
STIPULATION**

TENTATIVE RULING: The motion is GRANTED. The Court will sign the Proposed Order and Proposed Judgment.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court *or* emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Wells Fargo Bank, N.A. move, pursuant to California Code of Civil procedure 664.6, to vacate the dismissal and enter Judgment pursuant to the Parties' Stipulation.

The Court finds good cause for entering judgment based on the Parties' stipulated settlement, filed February 7, 2025, this Court's Order of February 14, 2025, and the Declaration of Edgar B. Lopez filed in support of the instant motion (Lopez Decl.). (See *Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1183 [entering appealable judgment on trial court order, entered after dismissal, that finally determined the rights of the parties in the action].) No opposition appears in the Court's file.

MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING: The Motion is GRANTED.

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: An Amended Order to Show Cause for Change of Name (OSC) was entered in this matter on June 05, 2026. Petitioner is required to publish the OSC in the manner set forth in Code of Civil Procedure, section 1277. However, there is no proof of publication (POP) in the Court's file. If one is filed before the hearing, the petition will be GRANTED without need for appearance.

If no proof of publication is filed, the matter will be CONTINUED to August 04, 2026, at 8:30 a.m. in Dept. A to provide any publisher time to file the POP.

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In The Matter of Ellenor Kathleen Braddon Harkin

26CV000747

PETITION FOR CHANGE OF NAME

APPEARANCE REQUIRED.

The Proof of Publication in the Court's file (POP) shows that only one name was published: Ellenor Kathleen Braddon Harkin. Thus, the Court is authorized to change the name Ellenor Kathleen Braddon Harkin to Ellenor Kathleen McHarrie.

This matter came on originally for hearing on June 2, 2026. Petitioner appeared and informed the Court that she would like her new name to contain a hyphen. The Court noted that it could not do so based on the POP and continued the matter to permit Petitioner to re-publish. Republication requires Petitioner to obtain a new Order to Show Cause. However, neither a new Order to Show Cause, nor a new POP appear in the Court's file.

Petitioner is, therefore, directed to appear to inform the Court as to how she would like to proceed. Petitioner is also encouraged to consult with the Court's Self-Help Center, located on the lower level of the Historic Courthouse at 825 Brown Street, for assistance with the matter.

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In the Matter of Sara Perez

26CV001110

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: An Order to Show Cause for Change of Name (OSC) was entered in this matter on May 27, 2026. Petitioner is required to publish the OSC in the manner set forth in Code of Civil Procedure, section 1277. However, there is no proof of publication (POP) in the Court's file. If one is filed before the hearing, the petition will be GRANTED without need for appearance.

If no proof of publication is filed, the matter will be CONTINUED to August 04, 2026, at 8:30 a.m. in Dept. A to provide any publisher time to file the POP.

In The Matter of Sara Perez

26CV001109

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.

.....

In The Matter of Sharon Ann Mullen

26CV001143

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.

.....

In The Matter of Cameron Dean Busquaert

26CV001237

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: An Order to Show Cause for Change of Name (OSC) was entered in this matter on June 09, 2026. Petitioner is required to publish the OSC in the manner set forth in Code of Civil Procedure, section 1277. However, there is no proof of publication (POP) in the Court's file. If one is filed before the hearing, the petition will be GRANTED without need for appearance.

If no proof of publication is filed, the matter will be CONTINUED to August 04, 2026, at 8:30 a.m. in Dept. B to provide any publisher time to file the POP.